

STATE OF NEW YORK

544--B

Cal. No. 54

2025-2026 Regular Sessions

IN ASSEMBLY

(Prefiled)

January 8, 2025

Introduced by M. of A. PAULIN, SEAWRIGHT, McMAHON, LEVENBERG, JACOBSON, GRIFFIN, SAYEGH, SHIMSKY, OTIS -- read once and referred to the Committee on Codes -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- reported from committee, advanced to a third reading, amended and ordered reprinted, retaining its place on the order of third reading

AN ACT to amend the criminal procedure law, in relation to requiring police officers to take temporary custody of firearms when responding to reports of family violence

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

Section 1. Paragraphs (a) and (c) of subdivision 6 of section 140.10 of the criminal procedure law, as added by section 2 of part M of chapter 55 of the laws of 2020, are amended to read as follows:

(a) (i) A police officer who responds to a report of a family offense as defined in section 530.11 of this chapter and section eight hundred twelve of the family court act:

(1) may take temporary custody of any firearm, rifle, electronic dart gun, electronic stun gun, disguised gun, imitation weapon, shotgun, antique firearm, black powder rifle, black powder shotgun, or muzzle-loading firearm that is in plain sight or is discovered pursuant to a consensual or other lawful search~~[-and]~~;

(2) shall take temporary custody of any ~~[such-weapon]~~ firearm, rifle, electronic dart gun, electronic stun gun, disguised gun, imitation weapon, shotgun, antique firearm, black powder rifle, black powder shotgun, or muzzle-loading firearm that is in the possession of any person arrested for the commission of ~~[such]~~ a family offense or suspected of its commission~~[-]~~; and

(3) shall take temporary custody of any firearm, rifle, electronic dart gun, electronic stun gun, disguised gun, imitation weapon, shot-

EXPLANATION--Matter in italics (underscored) is new; matter in brackets ~~[-]~~ is old law to be omitted.

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1 gun, antique firearm, black powder rifle, black powder shotgun, or
2 muzzle-loading firearm that is in plain sight or is discovered pursu-
3 ant to a consensual or other lawful search if any one of the following
4 circumstances is present:

5 A. the victim responds in the affirmative to the suspect threats ques-
6 tions in the victim interview section in the prior history section of
7 the New York state standardized domestic incident report (DIR) form; or

8 B. the victim responds in the affirmative to any of the lethality
9 assessment questions in the prior history section of the New York state
10 standardized domestic incident report (DIR) form; or

11 C. any responding officer has a reasonable belief that it is necessary
12 to remove such weapon to protect the victim or other persons present, or
13 to prevent risk of further violence or threat.

14 (ii) An officer who takes custody of any weapon pursuant to this para-
15 graph shall also take custody of any license to carry, possess, repair,
16 and dispose of such weapon issued to the person arrested or suspected of
17 such family offense. The officer shall deliver such weapon and/or
18 license to the appropriate law enforcement officer as provided in
19 subparagraph (f) of paragraph one of subdivision a of section 265.20 of
20 the penal law.

21 (c) Not less than [~~forty-eight~~] one hundred twenty hours after effect-
22 ing such seizure, and in the absence of (i) an order of protection, an
23 extreme risk protection order, or other court order prohibiting the
24 owner from possessing such a weapon and/or license, or (ii) a pending
25 criminal charge or conviction which prohibits such owner from possessing
26 such a weapon and/or license, and upon a written finding that there is
27 no legal impediment to the owner's possession of such a weapon and/or
28 license, the court or, if no court is involved, licensing authority or
29 custodian of the weapon shall direct return of a weapon not otherwise
30 disposed of in accordance with subdivision one of section 400.05 of the
31 penal law and/or such license taken into custody pursuant to this
32 section.

33 § 2. This act shall take effect immediately.